

24STCV17156 24STCV17156

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C513%2C06%2F26%2F2026

Source SHA-256: 4d9e46c584a1880d00fa7d7ca4f61a3ad1679b0e7a41a2a7eb193f3f4e00cb3f

Case Number: 24STCV17156 Hearing Date: June 26, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

LA FORWARD INSTITUTE, et al.;

Plaintiffs,

vs.

CITY OF LOS ANGELES, et al.;

Defendants.

Case

No.:

24STCV17156

Hearing

Date:

June

26, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

(1)

Defendant's
motion for protective order

(2)

defendant's motion to
stay deposition and quash notice of deposition

(3)

Plaintiff's motion to
compel Deposition; Compel further responses to requests for production of
documents (Set Three), special interrogatories (set two), and admission (Set
Three); and Request for MONETARY sanctions

MOVING PARTY: (1) & (2) Defendant City of
Los Angeles

(3) Plaintiff LA
Forward Institute

RESPONDING PARTY: (1) & (2) Plaintiff LA Forward
Institute

(3) Defendant City of
Los Angeles

(1) Motion for Protective Order

(2) Motion to Stay Deposition and Quash
Notice of Deposition

(3) Motion to Compel Deposition, Provide
Further Responses to Requests for Production of Documents, Special

Interrogatories, and Admission, and Request for Monetary Sanctions

The court considered the moving, opposition, and reply papers filed in connection with these motions.

MOTION FOR PROTECTIVE ORDER

Defendant City of Los Angeles ("Defendant") moves for a protective order prohibiting plaintiff LA Forward Institute ("Plaintiff") from (1) pursuing a deposition of Dr. Cris Liban ("Dr. Liban"), the President of the Board of Transportation Commissioners, or of any other board member and (2) pursuing extensive written discovery beyond the public records concerning the Board of Transportation Commissioners' December 2024 vote or, in the alternative, that the court stay discovery regarding the Board of Transportation Commissioners until Judge Kin has resolved the writ action challenging the Board of Transportation Commissioners' December 2024 vote and the parties have met and conferred after to discuss what discovery remains.

Defendant moves on the grounds that (1) the request to depose Dr. Liban seeks testimony that is not relevant, (2) the deposition of Dr. Liban would invade the deliberate process privilege, (3) the burden, expense, or intrusiveness of the discovery clearly outweighs the likelihood that the information sought will lead to discovery of admissible evidence, and (4) a protective order would prevent unwarranted annoyance, embarrassment, oppression, and/or undue burden and expense. In addition, Defendant argues that the protective order is necessary to protect Defendant from unwarranted annoyance, oppression, undue burden, and expense in responding to interrogatories, requests for admission, and requests for production concerning the Board of Transportation Commissioners.

First, the court finds that the subject matter of Dr. Liban's deposition is relevant. " '[T]he scope of discovery extends to any information that reasonably might lead to other evidence that would be admissible at trial. 'Thus, the scope of permissible discovery is one of reason, logic, and common sense.' [Citation.] These rules are applied liberally in favor of discovery." (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1612.) As Plaintiff notes, the circumstances surrounding the December 10, 2024, Board of Transportation Commissioners' special meeting, such as who convened the meeting

and why it was scheduled, are relevant to Plaintiff's theory that Defendant violated the Fair Employment and Housing Act, state housing law, and the California Equal Protection clause by improperly blocking the project from moving forward.

Second, the

court finds that the apex doctrine does not apply because Dr. Liban is not the kind of "highly placed public officer" to whom the doctrine applies, such as attorneys general, the Director of California Employment Development Department, the former Director of State Department of Health Services, state governors, and members of state licensing boards. (Contractors' State License Bd. v. Superior Court (2018) 23 Cal.App.5th 125, 131 [noting that the doctrine has been invoked to protect individuals including attorneys general, the Director of California Employment Development Department, the former Director of State Department of Health Services, state governors, and members of state licensing boards].)

Furthermore, Defendant does not provide any evidence that the Board of Transportation Commissioners is an independent city agency or that it issues administrative decisions independent of Defendant which would make Dr. Liban, as President of the Board of Transportation Commissioners, a highly placed public officer of such an agency. Accordingly, Dr. Liban is not the kind of "highly placed public officer" to whom the rule applies.

Even if the

apex doctrine were to apply to Dr. Liban, the court finds that Plaintiff has met its burden to show (1) good cause that Dr. Liban has unique or superior personal knowledge of discoverable information in this action and (2) that less intrusive methods of discovery have been exhausted. (Contractors' State License Bd., supra, 23 Cal.App.5th at p. 132 [An exception will be made to the general rule that agency heads and other top government executives are not subject to deposition "only when the deposing party makes two showings. First, the deposing party must show that the government official has direct personal factual information pertaining to material issues in the action. . . . Second, the deposing party must also show the information to be gained from the deposition is not available through any other source."] [internal quotations and citation omitted].)

Dr. Liban states that (1) he is the President of Defendant's Board of Transportation Commissioners, (2) he had no personal involvement in the scheduling or planning of the Board of Transportation Commissioners special meeting that took place on December 10, 2024, and (3) he had

no involvement or personal knowledge of Defendant's handling of issues concerning the proposed project prior to or after the December 10, 2024 meeting and vote. (Liban Decl., ¶¶ 2, 5, 6.) However, the declaration does not address Plaintiff's concerns, such as who proposed the December 10, 2024 meeting and whether Dr. Liban has personal knowledge regarding the history of hearings and votes in connection with affordable housing projects. Dr. Liban may have personal factual information pertaining to those material issues.

The court also finds that Plaintiff has exhausted less intrusive discovery methods because the parties have met and conferred regarding information related to the December 10, 2024 Board of Transportation Commissioners' special meeting and Plaintiff has sought to depose lower-level employees who have relevant knowledge, such as Ken Husting, the Principal Transportation Engineer with the Bureau of Parking Management. (Opp. to Motion to Compel Deposition, p. 8, lines 24-28.) In addition, Plaintiff has served requests for production of documents, special interrogatories, and requests for admission concerning the circumstances surrounding the December 10, 2024 Board of Transportation Commissioners' special meeting, but Defendant has objected to those discovery requests. (Scott Decl., Exhs. I, J, K.) Thus, less intrusive discovery methods have been exhausted.

Third, the court finds that Defendant has not shown good cause for an order preventing the deposition of Dr. Liban because Defendant fails to meet its burden to show that (1) the public has a specific interest in nondisclosure of Dr. Liban's testimony and (2) why that interest clearly outweighs the public interest in disclosure as Defendant fails to address its burden on this issue. (*Citizens for Open Government v. City of Lodi* (2012) 205 Cal.App.4th 296, 307 [explaining the policy behind the privilege was not sufficient to explain the public's specific interest in nondisclosure of the documents at issue, and thus the city "failed to carry its burden to explain what the public's specific interest in nondisclosure was in this case. . . . The city also failed to carry its burden to explain why the public's interest in nondisclosure in this case clearly outweigh[ed] the public interest in disclosure"] [internal quotations and citation omitted].) Defendant merely argues that Plaintiffs cannot depose Board of Transportation Commission members regarding information that is covered by the deliberative process privilege. (Motion, p. 12:23-24.)

In addition, Plaintiff has identified factual areas of inquiry that fall outside the deliberative process

privilege. In County of Los Angeles

v. Superior Court (1975) 13 Cal.3d 721, the plaintiff sought to depose each supervisor regarding discussions that occurred between the Board and the County's labor negotiators during closed-session meetings preceding negotiations with the employee representative. (Id. at p. 724.) The plaintiff conceded that the purpose of the questioning was to probe the supervisors' reasoning behind their subsequent adoption of the salary ordinance and to uncover evidence showing that the strike was a substantial factor in the ultimate legislative wage increases. (Ibid.) Thus, the trial court in that case erred in ordering the deponents to answer questions directed at the legislators' reasons for voting for the ordinance. (Id. at p. 732.) However, the circumstances in this case are different. Plaintiff seeks to focus on who convened the Special Meeting, why the Special Meeting was scheduled when it was, and the Board's typical practices in approving affordable housing projects on City-owned land. (Opp. p. 5:3-8.) These areas of inquiry do not probe into Dr. Liban's reasons for voting or the considerations underlying how he voted in the December 10, 2024 Board of Transportation Commissioners' special meeting. Thus, Plaintiff identifies factual areas of inquiry outside the scope of the deliberative process privilege. Plaintiff is therefore not barred from deposing Dr. Liban or any other board member.

The court grants Defendant's request for a protective order regarding Requests for Admission nos. 59 and 60 because Defendant has shown good cause to make an order that those requests need not be answered since the needs of the case do not warrant these requests as they are not relevant to the Board of Transportation Commissioners special meeting or the matter as a whole. (Code Civ. Proc., § 2033.080, subd. (b); People ex rel. Harris v. Sarpas (2014) 225 Cal.App.4th 1539, 1552 ["In considering whether the discovery is unduly burdensome or expensive, the court takes into account 'the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation'"].)

The court denies Defendant's request for a protective order regarding Interrogatory nos. 20 through 33 because Defendant has not shown good cause to make an order those interrogatories need not be answered since Defendant fails to show that justice requires an order to protect Defendant from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. (Code Civ. Proc., § 2030.090, subd. (b).) Defendant has not presented any evidence to support a finding of annoyance, embarrassment, oppression, or undue burden and expense and, as discussed above, information regarding the Board of Transportation Commissioners special meeting is relevant to the subject matter

of this action.

The court denies Defendant's request for a protective order regarding Plaintiff's Requests for Production of Documents because Defendant has not shown good cause to make an order that Requests for Production of Documents nos. 31 through 46 need not be answered because Defendant fails to meet its burden to show that (1) the public has a specific interest in nondisclosure and (2) why that interest clearly outweighs the public interest in disclosure as Defendant fails to address its burden entirely. (Citizens for Open Government, supra, 205 Cal.App.4th at p. 307.)

MOTION TO STAY DEPOSITION AND QUASH NOTICE OF DEPOSITION

Defendant moves the court for an order staying the deposition of Dr. Liban and quashing the Notice of Deposition issued by Plaintiff on the grounds that (1) it is not relevant, (2) the "apex" doctrine applies, and (3) the deliberative process privilege applies.

Code of Civil Procedure, section 2025.410, subdivision (c), provides: "In addition to serving [a] written objection, a party may also move for an order staying the taking of the deposition and quashing the deposition notice. This motion shall be accompanied by a meet and confer declaration under Section 2016.040. The taking of the deposition is stayed pending the determination of this motion." (Code Civ. Proc., § 2025.410, subd. (c).)

For the same reasons as discussed above in connection with Defendant's motion for a protective order, the court denies Defendant's motion to stay the deposition of Dr. Liban and to quash the Notice of Deposition.

MOTION TO COMPEL DEPOSITION, PROVIDE FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SPECIAL INTERROGATORIES, AND ADMISSION, AND REQUEST FOR MONETARY SANCTIONS

Plaintiff moves the court for an order to (1) produce Dr. Liban to be deposed by Plaintiff, (2) provide further responses to Plaintiff's Third Set of Requests for Production of Documents, numbers 31-44, (3) provide further responses to Plaintiff's Second Set of

Special Interrogatories, numbers 20-33, (4) provide further responses to Plaintiff's Third Set of Requests for Admission, numbers 59-60, and (5) award monetary sanctions.

If a party to the action fails to appear for or proceed with an examination without making a valid objection under Section 2025.410, the party noticing the deposition may move to compel the deponent's attendance and testimony.
(Code Civ. Proc., § 2025.450, subd. (a).)

For the same reasons discussed above in connection with Defendant's motion for a protective order, the court grants Plaintiff's motion to compel deposition, ordering Defendant to produce Dr. Liban to appear for and testify at a deposition, but prohibiting Plaintiff from inquiring into Dr. Liban or any other board members' state of mind leading to their vote in the December 10, 2024, Board of Transportation Commissioners' special meeting.

The court notes that Plaintiff also requested orders compelling further responses to requests for production of documents, special interrogatories, and admission. As the court previously pointed out in the March 18, 2026 minute order, Plaintiff improperly combined one motion to compel deposition and three motions to compel further discovery responses into one motion. Combining multiple motions into one motion is not in furtherance of judicial efficiency and economy, and circumvents the court's reservation system. Thus, the court denies Plaintiff's motion to compel further responses to requests for production of documents, special interrogatories, and admission.

The court denies Plaintiff's request for monetary sanctions because Plaintiff has not identified every person, party, and attorney against whom the sanctions are sought in the notice of motion as required by Code of Civil Procedure section 2023.040.

ORDER

The court grants in part, and denies in part, defendant City of Los Angeles' motion for protective order prohibiting plaintiff LA Forward Institute from (1) pursuing a deposition of Dr. Cris Liban

or of any other board member and (2) pursuing extensive written discovery beyond the public records concerning the Board of Transportation Commissioners' December 2024 vote.

The court issues a protective order that defendant City of Los Angeles need not answer Requests for Admission nos. 59 and 60.

The court denies all other relief requested by defendant City of Los Angeles in its motion for protective order without prejudice to its asserting appropriate objections to questions at deposition or to written discovery requests that inquire into the state of mind that may have led to Dr. Liban's or other board members' votes in the December 10, 2024 Board of Transportation Commissioners' special meeting.

The court denies defendant City of Los Angeles' motion to stay the deposition and quash the notice of Dr. Liban's deposition.

The court grants plaintiff LA Forward Institute's motion to compel deposition as follows.

The court orders defendant City of Los Angeles to produce Dr. Liban to appear for and testify at a deposition, to be taken by counsel for plaintiff LA Forward Institute, on a date to be agreed upon by counsel, within 30 days of the date of this order.

The court denies plaintiff LA Forward Institute's motion to compel further responses to requests for production of documents, special interrogatories, and admission.

The court denies plaintiff LA Forward Institute's request for sanctions.

The court orders Plaintiff LA Forward Institute to give notice of this ruling.

IT
IS SO ORDERED.

DATED: June 26, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court